

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: NAME: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III FIRM NAME: STREET ADDRESS: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B CITY: Unincorporated Township of Long Hollow Crossing STATE: AZ ZIP CODE: 01234-9999 TELEPHONE NO.: 555-0142 ext. 44821 FAX NO.: EMAIL ADDRESS: alexandrina.montgomery.vandenberg.oyelaran.fitzwilliam@department-of-example.example.gov ATTORNEY FOR (name):	FOR COURT USE ONLY		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Saint Bartholomew and the Northern Reaches County STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE:			
PEOPLE OF THE STATE OF CALIFORNIA V. DEFENDANT: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III			
<table border="0"> <tr> <td style="text-align: center;"> ORDER FOR DISMISSAL (Pen. Code, §§ 17(b), 17(d)(2), 1203.4, 1203.4a, 1203.41, 1203.42, 1203.43, 1203.49) </td> <td> CASE NUMBER: 0123-45-2026-CR-900123.00-AB-CDE/2201 </td> </tr> </table>		ORDER FOR DISMISSAL (Pen. Code, §§ 17(b), 17(d)(2), 1203.4, 1203.4a, 1203.41, 1203.42, 1203.43, 1203.49)	CASE NUMBER: 0123-45-2026-CR-900123.00-AB-CDE/2201
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From the petition filed in this matter, the records of the court, and any other evidence presented in this matter, the court orders as follows:

1. ☐ The court **GRANTS** the petition for reduction of a felony to a misdemeanor (maximum punishment of 364 days per Pen. Code, § 18.5) under Penal Code section 17(b) and/or for reduction of a misdemeanor to an infraction under Penal Code section 17(d)(2) and reduces
 - a. ☐ ALL FELONY CONVICTIONS in the above-entitled action.
 - b. ☐ ALL MISDEMEANOR CONVICTIONS in the above-entitled action.
 - c. ☐ only the following convictions in the above-entitled action (*specify charges and date of conviction*):

2. ☐ The court **DENIES** the petition for reduction of a felony to a misdemeanor under Penal Code section 17(b) and/or for reduction of a misdemeanor to an infraction under Penal Code section 17(d)(2) for
 - a. ☐ ALL FELONY CONVICTIONS in the above-entitled action.
 - b. ☐ ALL MISDEMEANOR CONVICTIONS in the above-entitled action.
 - c. ☐ only the following convictions in the above-entitled action (*specify charges and date of conviction*):

3. ☐ The court **GRANTS** the petition for dismissal regarding the following convictions under Penal Code (*check all that apply*)
☐ § 1203.4 ☐ § 1203.4a ☐ § 1203.41 ☐ § 1203.42 ☐ § 1203.43 ☐ § 1203.49
 and it is ordered that the pleas of guilty or nolo contendere or verdicts or findings of guilt be set aside and vacated and a plea of not guilty be entered and that the complaint or information be, and is hereby, dismissed for (*check one*)
 - a. ☐ ALL CONVICTIONS OR PLEAS FOR DEFERRED ENTRY OF JUDGMENT in the above-entitled action.
 - b. ☐ only the following convictions or pleas for deferred entry of judgment in the above-entitled action (*specify charges and date of conviction or plea for deferred entry of judgment*):

PEOPLE OF THE STATE OF CALIFORNIA v. DEFENDANT:

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

CASE NUMBER:

0123-45-2026-CR-900123.00-AB-CDE/2201

4. ☐ The court **DENIES** the petition for dismissal under Penal Code (*check all that apply*)
☐ § 1203.4 ☐ § 1203.4a ☐ § 1203.41 ☐ § 1203.42 ☐ § 1203.43 ☐ § 1203.49 for (*check one*)
a. ☐ ALL CONVICTIONS OR PLEAS FOR DEFERRED ENTRY OF JUDGMENT in the above-entitled action.
b. ☐ only the following convictions or pleas for deferred entry of judgment in the above-entitled action (*specify charges and date of conviction or plea for deferred entry of judgment*):
5. ☐ In granting this order under the provisions of Penal Code section 1203.49, the court finds that the petitioner was a victim of human trafficking when petitioner committed the crime.
a. The court orders (*check one*):
(1) ☐ the relief described in section 1203.4.
(2) ☐ the relief described in section 1203.4, with the following exceptions (*specify*):
b. The Department of Justice is hereby notified that petitioner was a victim of human trafficking when petitioner committed the crime, and notified of the relief ordered.
6. If this order is granted under the provisions of Penal Code section 1203.4, 1203.41, or 1203.42,
a. the petitioner is required to disclose the above conviction in response to any direct question contained in any questionnaire or application for public office, or for licensure by any state or local agency (or, under Penal Code section 1203.41, for licensure by a federally recognized tribe or for enrollment as a provider of in-home supportive services and "waiver personal care services" (see Welf. & Inst. Code, §§ 12300–12318, 14132.95, 14132.952, 14132.956, 14132.97)), or for contracting with the California State Lottery Commission; and
b. dismissal of the conviction does not *automatically* relieve petitioner from the requirement to register as a sex offender. (See, e.g., Pen. Code, § 290.5.)
7. If this order is granted under the provisions of Penal Code section 1203.4, 1203.4a, 1203.41, 1203.42, or 1203.49, the petitioner is released from all penalties and disabilities resulting from the offense except as provided in Penal Code sections 29800 and 29900 (formerly sections 12021 and 12021.1) and Vehicle Code section 13555. In any subsequent prosecution of the petitioner for any other offense, the prior conviction may be pleaded and proved and shall have the same effect as if probation had not been granted or the accusation or information dismissed. The dismissal does not permit a person to own, possess, or have in their control a firearm if prevented by Penal Code section 29800 or 29900 (formerly sections 12021 and 12021.1). Dismissal of a conviction does not permit a person prohibited from holding public office as a result of that conviction to hold public office.
8. Dismissal under Penal Code section 1203.4 or 1203.4a does not release petitioner from the terms and conditions of any unexpired criminal protective order issued under Penal Code section 136.2(i)(1), 273.5(j), 368(f), or 646.9(k).
9. In addition, as required by Penal Code section 299(f), relief under Penal Code section 17(b), 17(d)(2), 1203.4, 1203.4a, 1203.41, 1203.42, or 1203.49 does *not* release petitioner from the separate administrative duty to provide specimens, samples, or print impressions under the DNA and Forensic Identification Database and Data Bank Act (Pen. Code, § 295 et seq.) if petitioner was found guilty by a trier of fact, not guilty by reason of insanity, or pled no contest to a qualifying offense as defined in Penal Code section 296(a).
10. The basis for an order of dismissal granted under the provisions of Penal Code section 1203.43 is the invalidity of petitioner's prior plea due to misinformation in former Penal Code section 1000.4 regarding the actual consequences of making a plea and successful completion of a deferred entry of judgment program.
11. Notice: Except as provided in Penal Code section 1203.425(a)(4), if this order is granted under Penal Code section 1203.4, 1203.4a, 1203.41, or 1203.42, the court must not disclose information concerning a conviction granted relief to any person or entity, in any format, except to the person whose conviction was granted relief or to a criminal justice agency.

FOR COURT USE ONLY

Date:



(JUDICIAL OFFICER)